

26NWCV00818 26NWCV00818

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-08-04

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Case Number: 26NWCV00818 Hearing Date: August 4, 2026 Dept: R

#12

ONTARIO

REFRIGERATION SERVICE, INC. v. KASSABIAN LLC

CASE NO.: 26NWCV00818

HEARING: Tuesday, August
4, 2026, at 9:30 a.m.

Defendant KASSABIAN LLC's Motion to Expunge Lis Pendens is GRANTED.

Moving Party to give Notice.

Background

On March 5, 2026, Plaintiff ONTARIO REFRIGERATION SERVICE, INC. ("Plaintiff") filed this action against Defendant KASSABIAN, LLC ("Defendant"). On May 1, 2026, Plaintiff filed the First Amended Complaint ("FAC").

Plaintiff's FAC asserts the following causes of action:

(1) Breach
of Contract;

(2) Breach
of Contract;

(3) Common
Counts;

(4) Common
Counts;

(5) Common
Counts; and

(6) Foreclosure
of Mechanic's Lien

Defendant moves to expunge the Mechanic's Lien recorded by
Plaintiff affecting real property located at 12727 Norwalk Boulevard,
California 90650.

Expunge Lis Pendens

CCP §405.30 provides, "[a]t any time after notice of
pendency of action has been recorded, any party, or any nonparty with an
interest in the real property affected thereby, may apply to the court in which
the action is pending to expunge the notice. However, a person who is not a
party to the action shall obtain leave to intervene from the court at or before
the time the party brings the motion to expunge the notice. Evidence or
declarations may be filed with the motion to expunge the notice. The court may permit evidence
to be received in the form of oral testimony, and may make any orders
it deems just to provide for discovery by any party affected by a
motion to expunge the notice. The claimant shall have the burden of
proof under Sections 405.31 and 405.32." (CCP §405.30, emphasis
added.)

CCP §405.31 provides, "[i]n proceedings under this chapter,
the court shall order the notice expunged if the court finds that the pleading
on which the notice is based does not contain a real property claim.
The court shall not order an undertaking to be given as a condition of
expunging the notice where the court finds the pleading does
not contain a real property claim." (CCP §405.31.)

CCP §405.32 provides, "[i]n proceedings under this

chapter, the court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim. The court shall not order an undertaking to be given as a condition of expunging the notice if the court finds the claimant has not established the probable validity of the real property claim.” (CCP §405.32.)

Defendant’s motion turns on the date of “completion” or cessation of work of improvement. A direct contractor may not enforce a lien unless the lien is recorded within 90 days after completion of the direct contract. (Civ. Code § 8412(a).)

The evidence shows Plaintiff completed the contract on September 18, 2025.

On September 18, 2025, Plaintiff’s Controls Manager stated:

“The controls retrofit is complete and the graphics work has also been completed. For the remainder of this week and into next week we will be monitoring the trends and make the needed adjustments. . . . We can set up the training in the next couple of weeks, in the meantime please feel free to contact us if there are any issues.”

(Kassabian Decl., ¶ 3, Ex. B, emphasis added)

Plaintiff thereafter issued a final invoice on September 30, 2025, for 100% of the contract price. (Kassabian Decl., Ex. D.) Plaintiff’s invoice seeks \$92,399.00, the same amount claimed in Plaintiff’s mechanic’s lien. (Id.) The governing proposal also provides that “Up to (2) hours of training will be provided upon conclusion of the project.” (Kassabian Decl., ¶ 2, Ex. A, emphasis added.) Further supporting the conclusion that the contract was complete by September 18, 2025.

In response, Plaintiff submits its project manager Ricardo Chavira’s Declaration. Mr. Chavira states that, “Based upon my experience managing commercial HVAC controls projects, installation of the physical controls equipment represents only one phase of this type of Project.” (Chavira Decl., ¶ 8.) Mr. Chavira maintains that, “Based upon my personal involvement in the Project and my review of Exhibit F, Ontario continued performing work required under the Project Agreement after September 18, 2025. The records

further reflect that Project closeout activities and the remaining Project work continued into November 2025, with the remaining Project items being completed on or about November 11, 2025.” (Chavira Decl., ¶ 29.)

The Court is unconvinced by Plaintiff’s evidence as Mr. Chavira fails to provide evidence that Plaintiff continued to work on the project past September 18, 2026. Indeed, perhaps what is most telling is Plaintiff’s misleading documentary evidence.

Mr. Chavira represents that Exhibit F contains Plaintiff’s contemporaneous “Project Closeout Records including project communications, work logs, service documentation, programming records, commissioning records, and related business records generated during completion of the Project following September 18, 2025.” (Chavira Decl., ¶ 5(f).)

However, attached as Exhibit F is the La Department of Social Services Building Automation System Operation and Maintenance Manual and not any evidence documenting work Plaintiff completed after September 18, 2025.

Moreover, Plaintiff’s October 17, 2025, training cannot be seen as “work of improvement.”

Work of improvement includes:

(1) Construction, alteration, repair, demolition, or removal, in whole or in part, of, or addition to, a building, wharf, bridge, ditch, flume, aqueduct, well, tunnel, fence, machinery, railroad, or road.

(2) Seeding, sodding, or planting of real property for landscaping purposes.

(3)

Filling, leveling, or grading of real property.

(Civil Code § 8060(a)(1)-(3)

Work of improvement seems to encompass activity taking place on real property. However, Mr. Chavira offered the training as “onsite or remote.” (Kassabian Decl., ¶ 4,

Ex. C.) Thus, the Court does not find the October 17, 2025, training to be evidence of a later completion date.

Ultimately,
Plaintiff held the burden to prove the recorded lien was valid. Based on Plaintiff's admission that "The controls retrofit is complete and the graphics work has also been completed" and the 100% invoice issued in the end of September, the Court finds that the project had been completed by September 18, 2025. Mr. Chavira's declaration merely contains conclusory statements that Plaintiff performed work after September 18, 2025, but Plaintiff fails to provide documentary evidence to meet its burden.

Thus,
since the 90-day period expired on December 17, 2025, Plaintiff's December 18, 2025, lien is untimely and void. Plaintiff's lis pendens must also be expunged because the mechanic's lien is void.

Attorney
Fee's

As the
prevailing party on the Petition to Release Mechanic's Lien, Defendant is entitled to an award of reasonable attorney's fees. (Civ. Code, § 8488(c).)

The Court
awards reasonable attorney's fees of \$1700. This amount is to be paid by no later than 90 days from the date of the Court's issuance of this Order. This date may be extended by agreement of the parties.

Conclusion

Defendant's Motion to Expunge Lis Pendens is GRANTED. Plaintiff's Mechanic's Lien recorded on December 17, 2025, is expunged.

Defendant's Objections Nos. 1-19 are OVERRULED.